

25STCV17345 25STCV17345

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-07-13

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Case Number: 25STCV17345 Hearing Date: July 13, 2026 Dept: 507

Tentative

Ruling

Judge Nicholas

F. Daum, Department 507

HEARING

DATE: July 13, 2026 TRIAL DATE: NOT SET

CASE: King Fong Wong v. Marieta Atanaya-Wong

CASE

NO.: 25STCV17345

DEMURRER TO FIRST AMENDED

COMPLAINT WITH MOTION TO STRIKE

MOVING

PARTY: Defendant Marieta Atanaya-Wong[1]

RESPONDING

PARTY(S): Plaintiff

King Fong Wong ("Anna")

TENTATIVE RULING:

Defendant

Marieta Anataya-Wong's Demurrer is SUSTAINED with leave to amend as to the

fourth cause of action for intentional infliction of emotional distress and otherwise OVERRULED.

Marieta

Anataya-Wong Motion to Strike is DENIED as MOOT.

Plaintiff

Anna Wong shall have thirty (30) days leave to amend.

Moving Party to give notice.

BACKGROUND

This

is a real estate and financial elder abuse action. Anna alleges that her daughter-in-law, Marieta, fraudulently induced her to temporarily transfer title her home to Marieta and her husband Gordon to assist them financially. Anna alleges that Marieta refused to return title to the property, which was intended to be inherited by all three of Anna's children jointly. After Gordon's death, Marieta later sold the property and retained the proceeds for herself.

DISCUSSION:

Demurrer

to First Amended Complaint

Marieta demurs to the First Amended

Complaint in its entirety. The Court sustains the demurrer to the fourth cause of action for failure to plead facts showing severe emotional distress. The Court otherwise overrules the demurrer.

Legal

Standard

A

demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004)

First

Cause of Action: Financial Elder Abuse

Financial elder abuse occurs when a person or entity “[t]akes, secretes, appropriates, obtains, or retains real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both.” (Welf. & Inst. Code § 15610.30.)

Marieta offers several arguments

claiming that the first cause of action is inadequately pled or legally barred. None of these arguments are supported by citations to authority supporting her position. First, Marieta contends that

Anna did not adequately allege that she retained an interest in the subject property because she admits that legal title was conveyed to Marieta. Not so. Anna alleges that she retained equitable title to the property, as evidenced by her continued collection of rental income and payment of maintenance costs. (FAC ¶¶ 4, 16, 34-36.) Marieta attempts to dismiss these allegations as insufficient to satisfy Evidence Code section 662’s presumption of beneficial title because they are “equally consistent with informal family financial arrangements.”

(Demurrer pp.14:27-15:2.) As Marieta’s own citation to the Evidence Code suggests, this is a question of fact. The Evidence Code 662 presumption is just that—a presumption—and, construing all facts in the light most favorable to the nonmoving party the Court must construe the facts as pled as sufficient to overcome the presumption. This is not an issue suitable for resolution on demurrer.

Marieta also claims that Anna fails to

allege that the property was sold for a wrongful use or with intent to defraud.

This argument is entirely without merit. Anna alleges that Marieta knew of Anna’s interest in the property and did not have the right to sell the property, but sold it anyway to keep the proceeds for her own benefit. (FAC ¶¶ 49-53.) These are factual allegations, not conclusions, and Marieta’s disagreement with Anna’s theory of liability does not make this claim subject to demurrer.

Finally, Marieta claims that this

cause of action is barred by the four-year statute of limitations. According to Marieta, this cause of action accrued in March of 2018 when legal title to the property was not immediately returned after Gordon and Marieta obtained the

financing for which it was made. (See FAC ¶¶ 21-23, 28.) This argument is incorrect on its face. Anna's claim accrues at the point of injury—i.e., when Marieta allegedly repudiated Anna's interest in the property. (See, e.g., *Laing v. Laubach* (1965) 223 Cal.App.2d 511, 519 [limitations period on resulting trust runs from beneficiary's knowledge or notice of repudiation of the trust].) Construed in Anna's favor, as required on demurrer, the pleadings allege that this repudiation occurred in February 2025, when the property was sold. (See FAC ¶ 40.) The Complaint was filed four months later. This action is not barred on its face.

Accordingly, the demurrer to the first cause of action is overruled.

Second

Cause of Action: Imposition of Resulting Trust

Marieta demurs to the second cause of action for imposition of a resulting trust as inadequately pled. The Court disagrees.

Marieta claims that Anna has not adequately alleged that the 2017 transfer of the property was not intended as a gift. Not so. Anna plainly alleges that the transfer was intended only to last until Gordon and Marieta's debts were satisfied. (FAC ¶¶ 24-28, 31.) Marieta cannot escape these allegations by dismissing them as "conclusions." They are facts, and they are adequate. Moreover, as discussed above, Anna has adequately alleged facts showing that she retained beneficial title, and Marieta cannot rely on Evidence Code section 662 to defeat that theory on demurrer.

Marieta further asserts, without citation to any authority, that the second cause of action is deficient because an oral promise to return real property cannot be recast as a resulting trust, and because Anna does not plead a "traceable res." The Court rejects these arguments as unsupported.

Finally, Marieta contends that a claim for a resulting trust is time-barred by a four year statute of limitations. For the reasons stated above with respect to the first cause of action, the Court rejects this contention.

Third

Cause of Action: Promissory Fraud

Marieta demurs to the third cause of action for promissory fraud as lacking specificity and time-barred. The Court rejects both arguments.

To

state a claim for fraud by way of false promise, a plaintiff must specifically plead both an intention to cause the promisee to act on the promise, and an intention at the time not to keep that promise. (*Hills Transp. Co. v. Southwest Forest Industries, Inc.* (1968) 266 Cal.App.2d 702, 708.) As with any fraud claim, these elements must be alleged “with sufficient specificity to allow defendant[s] to understand fully the nature of the charge made. (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.) However, the specificity requirement for fraud is “relaxed when it is apparent from the allegations that the defendant necessarily possesses knowledge of the facts.” (*Quelimane Co. v. Steward Title Guaranty Co.* (1998) 19 Cal.4th 26, 27.) That is the case here. This is a dispute between Anna and her daughter-in-law regarding whether Marieta promised to return title to the subject property after Gordon and Marieta had obtained the financing they required. (FAC ¶ 28.) This is sufficient to allow Marieta to understand the nature of the charge.

Marieta

also contends that this cause of action is improper because an oral promise to return real property cannot be recast as a fraud claim. The Court rejects this argument as unsupported by any authority.

Finally,

Marieta argues that this cause of action is barred by the three-year statute of limitations for fraud claims. For the reasons stated above, the Court finds that Anna alleges an injury which accrued no later than February of 2025. Because the Complaint was filed in June of 2025, this action is timely.

Fourth

Cause of Action: Intentional Infliction of Emotional Distress

Marieta demurs to the fourth cause of action for intentional infliction of emotional distress as inadequately pled. The Court agrees that Anna has not adequately alleged severe emotional

distress.

"The elements of the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct." (*Catsouras v. Department of California Highway Patrol* (2010) 181 Cal.App.4th 856, 874-875.) "Outrageous" conduct "must be so extreme as to exceed all bounds of that usually tolerated in a civilized community." (*Id.*) The defendant's conduct must be "directed primarily" at the plaintiffs, "calculated to cause them severe emotional distress," or "done with knowledge of their presence and of a substantial certainty that they would suffer severe emotional injury." (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 906.)

Marieta argues that Anna has not adequately alleged the severe emotional distress she suffered from the injury, so as to state a valid claim for intentional infliction of emotional distress. Here, the Court agrees. A bare pleading of severe emotional distress, without additional facts such as the nature, extent, or duration of the alleged emotional distress, is insufficient to state a cause of action. (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) This is the case here. The assertion that Anna "has suffered severe emotional distress and mental anguish in amounts which are presently unascertainable" is not sufficient. (FAC ¶ 78.) Anna's allegations concerning her age, her son's death, and the disruption to her estate planning for her children are relevant context, but they do not actually describe the nature or extent of her injury. (FAC ¶ 76.) For this particular tort, more is required.

With that said, the Court also notes that it disagrees with two of Marieta's arguments as to this cause of action, Marieta claims that the intentional infliction of emotional distress claim is barred by the statute of limitations. For the reasons stated above, the Court rejects this argument.

Marieta also argues that Anna does not allege conduct rising to the level of "extreme and outrageous," and that Anna has insufficiently alleged intentional conduct by Marieta. The Court disagrees. Construed favorably, Anna alleges that Marieta intentionally sold a property that had been intended to be kept in the family for all of Anna's heirs to use and enjoy, and that Anna had only temporarily (and, in her view, generously) transferred to support

Gordon and Marieta. (FAC ¶¶ 29-31, 40.) Anna alleges that Marieta did this to enrich herself (FAC ¶¶ 42-44) knowing that her actions would cause Anna emotional distress, and thereby recklessly disregarding that probability. (FAC ¶ 74.) This is sufficient.

Fifth Cause of Action: Accounting

Marieta demurs to the fifth cause of action for an accounting as inadequately pled.

An accounting is an equitable procedure to determine the amount of money a party is owed which is unliquidated and unascertained, and cannot be determined without examining the debits and credits of the relevant records. (E.g., *St. James Church v. Superior Court* (1955) 135 Cal.App.2d 352, 359.) An action for accounting is not proper where an ascertainable sum is owed. (*Id.*)

Marieta contends that this cause of action is deficient because it is derivative of the elder abuse, resulting trust, and fraud claims. The Court disagrees. An accounting is an equitable procedure and remedy. If the elder abuse, resulting trust, or fraud claims equitably require an accounting, then Anna may well be entitled to one. Marieta also claims that this cause of action is defective because the amount that would be owed is ascertainable. Marieta's conclusory assertion on this point is not persuasive. Whether or not the amount owed is ascertainable is ultimately a question of fact.

Finally, Marieta claims that the accounting claim is barred by the statute of limitations. For the reasons stated above in connection with other causes of action, the Court rejects this argument.

Leave to Amend

Anna has not expressly demonstrated how the fourth cause of action might be amended. However, the principal defect in that claim is the absence of detail showing severe emotional distress, and there are no facts alleged which would preclude alleging those details. Leave to amend is therefore proper to allow Anna to

allege those facts.

Meet and Confer

Before

filing a demurrer, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who has filed the pleading subject to the demurrer and file a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 430.41(a).)

However, an insufficient meet and confer process is not grounds to overrule or sustain a demurrer. (Code Civ. Proc., § 430.41(a)(4).)

Counsel for Marieta

declares that he met and conferred with his opposite number on March 24, 2026 via telephone, but the parties were unable to resolve this dispute. (Declaration of N. Stephen Vokshori ISO Dem. ¶ 5.) This is sufficient.

Overlength

Papers

Marieta's Memorandum of Points and

Authorities is 20 pages in length, excluding the caption, proof of service and tables of contents and authorities. A memorandum of points and authorities for a demurrer may not exceed 15 substantive pages. (Cal. Rules of Court 3.1113(d).) Overlength papers must be considered in the same manner as late-filed papers. (Cal. Rules of Court Rule 3.1113(g).) The Court, in its discretion, may disregard late-filed papers. (Cal. Rules of Court 3.1300(d).) Here, the Court exercises its discretion to consider the merits.

Conclusion

Accordingly,

Defendant Marieta Anataya-Wong's Demurrer is SUSTAINED with leave to amend as to the fourth cause of action for intentional infliction of emotional distress and otherwise OVERRULED.

Motion

to Strike

Because the Court has sustained a portion of the Demurrer and granted leave to amend, Marieta's Motion to Strike is DENIED AS MOOT.

CONCLUSION:

Accordingly, Defendant Marieta Anataya-Wong's Demurrer is SUSTAINED with leave to amend as to the fourth cause of action for intentional infliction of emotional distress and otherwise OVERRULED.

Marieta
Anataya-Wong Motion to Strike is DENIED as MOOT.

Plaintiff
Anna Wong shall have thirty (30) days leave to amend.

IT IS
SO ORDERED.

Dated: July 13, 2026 _____

Nicholas
F. Daum

Judge
of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.

[1] Because the principal individuals involved in this dispute share surnames, the Court refers to the relevant parties and decedents by their first name for clarity. No disrespect

is intended in doing so.